

1 GOLDSMITH & HULL, A.P.C./Our File # 23000467
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8 DFPI License Number 11011-99

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Superior Court of California,
County of Los Angeles
8/28/2024 11:38 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By E. Flores, Deputy Clerk

Attorneys for Plaintiff

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

NORTH VALLEY DISTRICT

Student Loan Solutions, LLC

Plaintiffs,

vs.

Dalton C Gaudin aka Dalton Caleb Gaudin

Defendants.

Case No. 24CHLC00778

DECLARATION PURSUANT TO
C.C.P. SECTION 1033;
CALCULATION OF PRE JUDGMENT
INTEREST; WAIVER OF ATTORNEY
FEE; DECLARATION RE: COPY IN
LIEU OF ORIGINAL PURSUANT TO
CALIFORNIA EVIDENCE CODE 1550 &
1551

I, Stephen R. Goldsmith do declare:

I am one of the attorneys for the plaintiff in this action. If called as witness in this action I can
testify competently of my own personal knowledge to the following facts:

C.C.P. SECTION 1033

(1) Plaintiff, prior to the filing of this action informed the defendants in writing that legal
action was going to be commenced against the defendants and that the legal action could result

1 in a judgment against the defendants which judgment would include an award of actual costs for
2 filing fees and service of process.

3 (2) A true copy of said written notice is attached hereto.

4 (3) Said notice was mailed to the defendants at the address shown on said exhibit.

5 **WAIVER OF PRE-JUDGMENT INTEREST**

6
7 2. That on behalf of said Plaintiff, I hereby waive our request for pre-judgment interest as
8 requested in the complaint on file herein.

9 **WAIVER OF ATTORNEY FEE**

10 3. That on behalf of said Plaintiff, I hereby waive our request for attorney fees as requested
11 in the complaint on file herein.

12 4. That I do this in order to facilitate the entry of judgment as against this defendant.

13 **DECLARATION RE: COPY IN LIEU OF ORIGINAL**

14 That I am the attorney for plaintiff herein. That if called as a witness in this action, I could
15 competently testify thereto. That I have responsibility over the client files for my caseload so the
16 plaintiff's documents herein are kept under my personal direct supervision and control; that the
17 original document known as **Declaration in Support of Application for Entry of Default**
18 **Judgment, Bill of Sale, Account & Consumer Information with Dates & Calculations,**
19 **Promissory Note, Note Disclosure Statement, Payment History & Deferments or**
20 **Forbearance Applied (if applicable), Bank of America Loan Tape (Redacted), Acceleration**
21 **Notices** has not been received in our office by our client.
22

23 Therefore, this declarant respectfully requests leave to file a copy of said true and correct
24 document which this declarant asserts is a true and correct copy of the original document herein.
25

1 I certify or (declare) under penalty of perjury under the laws of the State of California that the
2 foregoing is true and correct.

3 Executed this August 23, 2024 at Northridge, California.
4

5 GOLDSMITH & HULL, A.P.C.

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Stephen R. Goldsmith
9 Attorneys for Plaintiffs
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EXHIBIT “1”

Goldsmith & Hull, A.P.C.
16933 Parthenia Street, Suite 110
Northridge, CA 91343
(877) 660-2585
8am to 5pm PST, Monday to Friday
www.goldsmithcalaw.com
DFPI License Number 11011-99

To:
DALTON C GAUDIN
4470 W SUNSET BLVD STE 107
LOS ANGELES CA 90027

Reference: 23000467
November 6, 2023

Goldsmith & Hull, A.P.C. is a debt collector. We are trying to collect a debt that you owe to **Student Loan Solutions, LLC**. We will use any information you give us to help collect the debt.

OUR INFORMATION SHOWS:

You had a **Bank of America, N.A.**, with account number *****5152

As of April 29, 2022 you owed: \$9,653.42

Between April 29, 2022 and today:

You were charged this amount in interest: +\$.00

You were charged this amount in fees: + \$.00

You paid or were credited this amount
toward the debt: - \$.00

Total amount of the debt now: \$9,653.42

Notice: See reverse side for important information

HOW CAN YOU DISPUTE THE DEBT?

- **Call or write to us by December 26, 2023, to dispute all or part of the debt.** If you do not, we will assume that our information is correct.
- **If you write to us by December 26, 2023,** we must stop collection on any amount you dispute until we send you information that shows you owe the debt. You may use the form below or write to us without the form. You may also include supporting documents. We accept disputes electronically at consumerdisputes@goldsmithcalaw.com

WHAT ELSE CAN YOU DO ?

- **Write to ask for the name and address of the original creditor, if different from the current creditor.** If you write by **December 26, 2023**, we must stop collection until we send you that information. You may use the form below or write to us without the form. We accept such requests electronically at validation@goldsmithcalaw.com
- **Go to www.cfpb.gov/debt-collection to learn more about your rights under federal law.** For instance, you have the right to stop or limit how we contact you.
- **Contact us about your payment options.**
- **Póngase en contacto con nosotros para solicitar una copia de este formulario en español.**

✂ -----
Mail this form to:

Goldsmith & Hull, A.P.C.
16933 Parthenia Street, Suite 110
Northridge, CA 91343

From: DALTON C GAUDIN
4470 W SUNSET BLVD STE 107
LOS ANGELES CA 90027

How do you want to respond?

Check all that apply:

- ☐ **I want to dispute the debt because I think:**
 - ☐ This is not my debt.
 - ☐ The amount is wrong.
 - ☐ Other (please describe on reverse or attach additional information).
- ☐ **I want you to send me the name and address of the original creditor.**
- ☐ **I enclosed this amount: \$ _____**
make your check payable to *Goldsmith & Hull APC*
Include the reference No.: 23000467
- ☐ **Quiero este formulario en español.**

Disclosures

The California Rosenthal Fair Debt Collection Practices Act and the federal Fair Debt Collection Practices Act require that, except under unusual circumstances, collectors may not contact you before 8:00 AM or after 9:00 PM. They may not harass you by using threats of violence or arrest or by using obscene language. Collectors may not use false or misleading statements or call you at work if they know or have reason to know that you may not receive personal calls at work. For the most part, collectors may not tell another person, other than your attorney or spouse, about your debt. Collectors may contact another person to confirm your location or enforce a judgment. For more information about debt collection activities, you may contact the Federal Trade Commission at 1- 877-FTC-HELP or www.ftc.gov.

You may request records showing the following: (1) that Student Loan Solutions, LLC has the right to seek collection of the debt; (2) the debt balance, including an explanation of any interest charges and additional fees; (3) the date of default or the date of last payment; (4) the name of the charge-off creditor and the account number associated with the debt; (5) the name and last known address of the debtor as it appeared in the charge-off creditor's or debt buyer's records prior to the sale of the debt, as appropriate; and (6) the name of all persons or entities that have purchased the debt. You may also request from us a copy of the contract or other documents evidencing your agreement to the debt. A request for these records may be addressed to the Debt Buyer's active mailing address as follows::

Student Loan Solutions, LLC
PO Box 11590
Rock Hill, SC, 29731

You may request records showing the following: (1) that Student Loan Solutions, LLC has the right to seek collection of the debt; (2) the debt balance, including an explanation of any interest charges and additional fees; (3) the date the debt became delinquent or the date of last payment; (4) the name of the creditor and the account number associated with the debt; (5) the name and last known address of the debtor as it appeared in creditor's records prior to assignment of the debt; and (6) the names of all persons or entities other than the debt collector to which the debt has been assigned, if applicable. You may also request from us a copy of the contract or other documents evidencing your agreement to the debt. A request for these records may be addressed to the Debt Collector's Attorneys mailing address as follows:

Goldsmith & Hull, A.P.C.
16933 Parthenia Street, Suite 110
Northridge, CA 91343
www.goldsmithcalaw.com

To make payment please contact Olga Baeza at (818) 990- 6600 ext. 219.

THIS FIRM IS A DEBT COLLECTOR. WE ARE ATTEMPTING TO COLLECT A DEBT AND ANY INFORMATION OBTAINED WILL BE USED FOR THAT PURPOSE.

Very truly yours,
GOLDSMITH & HULL A.P.C



Stephen R. Goldsmith, Esq.